

Tentative Rulings for September 17, 2026 Department PS4

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 650 1311**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407699	KEMPER INDEPENDENCE INSURANCE COMPANY VS ENRIQUEZ	MOTION TO SET ASIDE DISMISSAL ON COMPLAINT BY KEMPER INDEPENDENCE INSURANCE COMPANY

Tentative Ruling: Plaintiff Kemper Independence Insurance Company's motion to set aside the dismissal entered 6/24/2026 is DENIED. On 5/29/2026 the court entered a minute order stating plaintiff's case would be dismissed if it did not submit a default judgment packet by 6/24/2026 that corrected the errors noted in the two default judgment packets plaintiff submitted previously. Plaintiff opted not to submit a corrected packet by the 6/24/2026 deadline.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407987	LENDMARK FINANCIAL SERVICES, LLC VS BRAVO	MOTION TO SET ASIDE THE DISMISSAL TO ENTER JUDGMENT PURSUANT TO STIPULATION BY LENDMARK FINANCIAL SERVICES, LLC

Tentative Ruling: Plaintiff Lendmark Financial Services, LLC's motion to vacate dismissal and enter judgment pursuant to stipulation is GRANTED. Pursuant to the stipulation agreement of the parties, and proof of a default in payments by defendant Jose Bravo having been made to the satisfaction of the court, judgment is entered in favor of plaintiff and against defendant in the total amount of \$3,814.60 (\$5,721.14 in principal + \$493.46 in court costs - \$2,400.00 in payments).

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504289	CITIBANK N.A. VS RAMIREZ	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CITIBANK N.A.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601219	CAPITAL ONE N.A. VS YANEZ	MOTION FOR ORDER TO DEEM MATTERS ADMITTED BY CAPITAL ONE N.A.

Tentative Ruling: Plaintiff Capital One N.A.'s motion for an order deeming matters admitted is DENIED. On 9/10/2026 defendant Daniel B. Yanez responded, without objection, to plaintiff's requests for admissions. (CCP 2033.280(c).)

5.

CASE #	CASE NAME	HEARING NAME
CVPS2606013	IN RE: 80803 CAMINO SANTA JULIANA, INDIO, CA	HEARING ON PETITION RE: UNRESOLVED CLAIMS

Tentative Ruling: No tentative ruling. The petition does not comply with Local Rule 3316C. Parties wishing to argue the petition are ordered to appear. Appearance may be telephonic.